

JUDGE GARDELLA

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
ROMULO MOREIRA

Plaintiff,

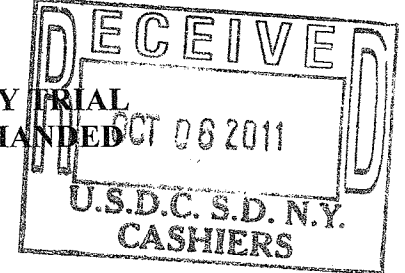
11 CIV 7040
Docket No.:

-against-

THE CITY OF NEW YORK, POLICE OFFICER
NICHOLAS KONNER (NYPD) TAX #940340,
POLICE OFFICER REPETTI (NYPD)
TAX # 937359, POLICE OFFICER COSTANZA
(NYPD) TAX #947905, POLICE OFFICER
MONTALVO (NYPD) TAX #943979, AND
NYPD POLICE OFFICERS JOHN
DOE #1-10 (THE NAME JOHN DOE BEING
FICTITIOUS, AS THE TRUE NAME(S) IS/ARE
PRESENTLY UNKNOWN),

COMPLAINT

JURY TRIAL
DEMANDED



Defendants.

-----X
The Plaintiff, complaining by his attorney(s), THE LAW OFFICE OF JEFFREY
CHABROWE, P.C., respectfully shows to this Court and alleges:

JURISDICTION

1. Jurisdiction is founded upon the existence of a Federal Question.
2. This is an action to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to the Plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. Section 1983 and arising under the law and statutes of the State of New York.

2011 OCT -6 PM 12:39

CLERK OF COURT
COMMUNICATIONS SECTION

3. Jurisdiction is founded upon 28 U.S.C. Sections 1331, 1343(3) and 1343(4), this being an action authorized by law to redress the deprivation under the color of law, statute, ordinance, regulation, custom and usage of rights, privileges and immunities secured to Plaintiffs by the Fourth and Fourteenth Amendments to the Constitution of the United States.

VENUE

4. Venue lies in this District pursuant to 28 U.S.C.A. Section 1391(b) (2) since the events giving rise to the claim occurred in the Southern District.

THE PARTIES

5. Plaintiff ROMULO MOREIRA resides in the Bronx, NY, and at all times relevant herein, worked in the Bronx, NY as an independent livery cab driver.
6. Upon information and belief, at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and that at all times relevant all Defendant officers were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.
7. Upon information and belief, at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK, its agents, servants, and employees, operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT, including all the police officers thereof.
8. Upon information and belief, at all times hereinafter mentioned, Defendant POLICE OFFICER KONNER, Defendant POLICE OFFICER REPETTI, Defendant POLICE OFFICER COSTANZA, Defendant POLICE OFFICER MONTALVO, and

Defendant POLICE OFFICERS JOHN DOE #1-10 were employed by the Defendant, CITY OF NEW YORK, as members of its police department.

9. Upon information and belief, at all times hereinafter mentioned, Defendant OFFICERS KONNER, REPETTI, COSTANZA, MONTALVO, and JOHN DOE #1-10 worked out of the 52nd Precinct in the Bronx , City of New York.
10. The NEW YORK CITY POLICE DEPARTMENT is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the POLICE CHIEF THE NEW YORK CITY POLICE DEPARTMENT is responsible for the policies, practices, and customs of the NEW YORK CITY POLICE DEPARTMENT as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees, and is the final decision maker for that agency.
11. This action arises, inter alia, under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983, and the rights guaranteed by the Constitution and laws of the State of New York.
12. Individual Defendants in this action are being sued in both their individual and official capacities.

STATEMENT OF FACTS

13. In or about December of 2009, near the Riverdale Target store upon information and belief, Defendant Officer Nicholas Konner pulled the vehicle being driven by Plaintiff Romulo Moreira over for no apparent reason.
14. When Mr. Moreira inquired about the impetus for the stop, Defendant Konner indicated there was a warrant out for Mr. Moreira's arrest—though curiously, Konner did not arrest Mr. Moreira.
15. Shocked, Mr. Moreira went to the courthouse the next day to see if Defendant Konner's claims had any merit; they did not, as there were no warrants pending for Mr. Moreira's arrest. Mr. Moreira proceeded to obtain paperwork confirming the same.
16. The next day, Defendant Konner once again pulled Mr. Moreira over in the vicinity of the Riverdale Target.
17. Mr. Moreira showed Defendant Konner the paper he obtained from the court verifying he was in no way wanted by the police. Defendant Konner looked at the paper briefly before saying, in sum and substance, "Get the fuck out of here," and throwing the paper back in Mr. Moreira's face aggressively.
18. Between about December 2009 and December 2010, Mr. Moreira was stopped at or near the Riverdale Target by Defendant Konner and others from the 52nd Precinct an additional 5-10 times for no apparent reason. He was never issued a ticket or cited in any way.
19. Still, the harassment was vicious, ongoing, and obviously fueled by officers' perception of him as homosexual (i.e., regularly accompanied by anti-gay epithets

such as “faggot”), such that Mr. Moreira sought relief from New York City’s 311 system, where he was directed to file a complaint with the Consumer Protection Board, and did (File No.: 20101221-145041-CD).

20. On January 30, 2011, Mr. Moreira was inexplicably pulled over in his vehicle outside the Riverdale Target by NYPD Defendant Officer “Costanza.” When Mr. Moreira asked why he was being stopped, Defendant Costanza said, in sum and substance, “Shut up, asshole scumbag. I’ll lock you up if you give me any lip.” Officer Costanza proceeded to write Mr. Moreira a ticket under the pretext that he had been “double parked.”
21. On March 6, 2011, Mr. Moreira was once again pulled over in his vehicle outside the Riverdale Target, this time by Defendant Officer “Repetti.” When Mr. Moreira asked why he was being stopped, Defendant Repetti responded, “Just give me your license and registration, asshole faggot!” and proceeded to write Mr. Moreira a ticket under the pretext that he had been “parking too close to a fire hydrant.”
22. On March 13, 2011, Defendant Repetti once again issued Mr. Moreira a ticket at or near the Riverdale Target store, this time under the pretext that his car had been “parked in front of a driveway.”
23. On March 27, 2011, Defendant Konner issued Mr. Moreira a ticket at or near the Riverdale Target store, once again falsely accusing Mr. Moreira of “parking in front of a driveway.”
24. Shortly thereafter, Mr. Moreira filed a complaint with the Civilian Complaint Review Board (CCRB #201103830) but nothing was done to address the problem.

25. Around this time, Mr. Moreira was standing in front of the Riverdale Target speaking to a hotdog vendor he was friendly with (“Remy Alejandro”) , when an Officer from the 52nd Precinct threatened to arrest him for “trespassing.” The officer told Mr. Moreira, in sum and substance, “You’re done—I don’t want to see you on the premises, all right? If you keep it up, I’ll make it impossible for you!”
26. On May 22, 2011, at about 12:00PM, while at the Riverdale Target, Mr. Moreira was manning his friend’s (Mr. Alejandro’s) hotdog stand while Alejandro went to the restroom. During that time, Mr. Moreira sold a single bottle of water on his friend’s behalf, costing \$1.00.
27. Shortly thereafter, Mr. Moreira was approached by Defendant Officer “Montalvo” and cited under the pretext that he had been “double parked.”
28. When Defendant Montalvo handed Mr. Moreira the ticket, he stated, in sum and substance, “Here you go, faggot.”
29. Fed up with vicious and blatantly discriminatory harassment, Mr. Moreira defiantly ripped the ticket into pieces.
30. At that point, Defendant Montalvo arrested Mr. Moreira for larceny and unlicensed vending, alleging that he had witnessed Mr. Moreira deliberately pocket the \$1.00 for the water he sold on Mr. Alejandro’s behalf while momentarily tending the hotdog stand.
31. Mr. Moreira spent approximately the next 23 hours in jail, deprived of food, despite giving notice to officers that he was diabetic and the lack of food posed a serious health risk. He was also intermittently mocked, ridiculed, and referred to as “fucking fag” by officers.

32. At his arraignment, all charges against Mr. Moreira were summarily dismissed.
33. Unfortunately, however, when Mr. Moreira went to retrieve his car from the Riverdale Target parking lot, he found that paint thinner or some other powerful acidic substance had deliberately been poured all over the vehicle, causing nearly \$4000.00 in damage.
34. When Mr. Moreira sought a copy of the Target store's security video, which security personnel said showed the vandalism occurring, security personnel told him they would preserve the video, but would not allow anyone to see it unless it was subpoenaed or otherwise requested as part of a police investigation.
35. Mr. Moreira then sought to file a complaint at the 52nd Precinct Re: the vandalism done to his car, but precinct police refused, stating in sum and substance that they didn't "deal with stupid stuff like that."
36. Understandably, Mr. Moreira suspects 52nd Precinct officers and/or their agents/co-conspirators carried out the vandalism to his car, and he looks forward to finally obtaining a copy of the video to verify those suspicions.
37. Mr. Moreira is now afraid to go anywhere near the Riverdale Target store, and has lost a considerable amount of income as a result. He has also suffered sleeplessness, difficulty concentrating, and generalized anxiety as a result of the abuse he suffered at the hands of officers from the 52nd Precinct.

STATE CLAIMS

38. Notice of the Plaintiff's claim, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller of the City of New York on August 10, 2011.

39. More than 30 days have elapsed since the Notice of Claim was served upon the Defendant City of New York and said Defendant has neglected to initiate any settlements thereof.

40. This action is commenced within One Year and Ninety-Days after the cause of action arose.

AS AND FOR THE FIRST CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST
DEFENDANTS CITY OF NEW YORK, MONTALVO, AND JOHN DOE(S) 1-10

-False Arrest/Imprisonment-

41. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 40.

42. The Fourth Amendment of the United States Constitution, Article 1§12 of the New York State Constitution, and well settled New York Common Law protect citizens from unreasonable searches and seizures by government officials, and prohibit law enforcement officers from arresting and detaining individuals in the absence of appropriate authorization. They also preclude police officers from conducting arrests in the absence of probable cause to believe that a crime has been committed.

43. The actions of the Defendants named above violated Romulo Moreira's rights under both Federal and New York State law. Given the backdrop of harassment directed at Mr. Moreira by officers at the 52nd Precinct, and the blatantly hostile, discriminatory, and retaliatory nature of Defendant Montalvo's arrest of Mr. Moreira, it is clear the Defendants lacked any good faith motivation or objectively reasonable basis to support a legitimate probable cause arrest.

44. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights of Romulo Moreira.
45. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.
46. As a direct and proximate result of the unconscionable acts described above, Plaintiff Romulo Moreira has been irreparably injured.

AS AND FOR THE SECOND CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST
DEFENDANTS CITY OF NEW YORK, MONTALVO, AND JOHN DOE(S) 1-10

-Malicious Prosecution-

47. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 40.
48. The Fourth Amendment of the United States Constitution, the New York State Constitution, and well-settled New York State common law protect citizens from overzealous and malicious prosecution by government officials without probable cause.
49. Romulo Moreira was prosecuted, without probable cause, relative to two misdemeanor offenses for the events that took place at the Riverdale Target store on May 22, 2011.
50. Said charges resulted in a loss of liberty for Romulo Moreira, as he was incarcerated for approximately 23 hours as a result of these false and improper charges.
51. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights of the Plaintiff.

52. The matter was terminated in Mr. Moreira's favor, as all charges against him were summarily dismissed.
53. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.
54. As a direct and proximate result of the unconscionable acts described above, Romulo Moreira has been irreparably injured.

AS AND FOR THE THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST DEFENDANTS AGAINST ALL
DEFENDANTS

-Conspiracy to Violate Plaintiff's Civil Rights-

55. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 40.
56. Defendant officers acting under color of state law in both their individual capacities and as agents for the City of New York, conspired together, reached a mutual understanding, and acted in concert to undertake a course of conduct violative of Plaintiffs' civil rights by:
- a. Agreeing to engage in an organized harassment campaign against the Plaintiff and/or his acquaintances.
 - b. Agreeing to intentionally fabricate a legal justification for numerous traffic citations and ultimately, the unauthorized arrest of the Plaintiff.
 - c. Agreeing to falsely arrest and imprison the Plaintiff as aforescribed.
 - d. Agreeing to contrive false charges against the Plaintiff, and to cause him to be maliciously prosecuted as aforescribed.

e. Agreeing to vandalize the Plaintiff's car.

57. This conduct on the part of Defendants represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

58. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights of Mr. Gourzong.

59. As a direct and proximate result of the unconstitutional acts described above, the Plaintiff has been irreparably injured.

AS AND FOR THE FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST DEFENDANTS AGAINST ALL
DEFENDANTS

-Equal Protection Violation-

60. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 40.

61. Under the Equal Protection Clause of the 14th Amendment, states are prohibited from denying citizens equal protection under the law; sexual orientation represents a protected class for equal protection purposes.

62. Police are prohibited from intentionally treating citizens disparately on the basis of their protected status, here the Plaintiff's perceived sexual orientation.

63. Defendant officers acting in both their individual capacities and as agents for the City of New York, conspired together to systematically harass and otherwise violate the Plaintiff's rights as a result of their collective perception that the Plaintiff is homosexual.

64. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

65. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights of Mr. Moreira.

66. As a direct and proximate result of the unconstitutional acts described above, the Plaintiff has been irreparably injured.

**AS AND FOR THE FIFTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF AGAINST THE CITY OF NEW YORK AND JOHN DOE 1-10**

-Cruel and Unusual Punishment-

67. Under the Eighth Amendment, states must not deprive prisoners of their basic human needs—e.g., food, clothing, shelter, medical care, and reasonable safety.

68. The Plaintiff is diabetic and as such, a substantial risk of serious harm exists if he is not allowed to eat at regular intervals.

69. The Plaintiff communicated his condition to prison officials, as well as the potential consequences of his not being provided food during his approximately 23 hour incarceration; nevertheless, said officials reacted with deliberate indifference, denying the Plaintiff food and putting his health at great risk, as well as causing substantial fear and anxiety on the part of the Plaintiff.

70. This conduct on the part of Defendants was a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.

71. Defendants' actions were motivated by bad faith, malice, and/or deliberate indifference to the rights of Mr. Moreira.

72. As a direct and proximate result of the unconstitutional acts described above, the Plaintiff has been irreparably injured.

**AS AND FOR THE SIXTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF AGAINST ALL DEFENDANTS**

-Intentional Infliction of Emotional Distress-

73. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 40.
74. Defendant officers, acting both as agents for the City of New York and in their individual capacities, knowingly and deliberately conspired together to harass the Plaintiff via unauthorized stops, discriminatory epithets, citations for violations Defendants had knowledge Plaintiff did not commit, culminating in the Plaintiff's arrest for crimes Defendants had knowledge Plaintiff did not commit, and finally, the destruction of the Plaintiff's property.
75. Said conduct was beyond extreme and outrageous, and was obviously instigated with an intent to cause and/or in brazen disregard of a substantial probability of causing severe emotional distress to the Plaintiff.
76. As a direct and proximate result of the aforesaid conduct by the above-named Defendants, Mr. Moreira was deprived of his liberty, was subjected to great indignity, humiliation, pain, great distress of mind and body, held up to scorn and ridicule, injured in character and reputation, prevented from attending his usual business and

avocation, was injured in his reputation in the community and otherwise irreparably damaged.

AS AND FOR THE SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST
DEFENDANTS DOE 1-10 AND THE CITY OF NEW YORK

-Negligence in Training and Supervising Employees-

77. Plaintiff incorporates by reference and realleges each and every allegation stated in Paragraphs 1 through 40.

78. Upon information and belief, Defendant City of New York and Officer(s) Doe 1-10 was/were supervisor(s) and final decision maker(s), and as a matter of policy, practice, and custom, acted with a callous, reckless and deliberate indifference to the Plaintiffs' constitutional rights, the laws of the United States, and the State of New York in that they failed to adequately hire, screen, discipline, train, supervise or otherwise direct police officers concerning the rights of citizens, including not making arrests without probable cause to believe a crime has been committed.

79. In the alternative, and upon information and belief, Defendants City of New York and John Doe 1-10 instituted policies addressing the issues listed above, but then through gross negligence, carelessness, malice, and/or improperly pressuring officers to meet certain arrest and citation quotas¹ regardless of whether probable cause was present, demonstrated a deliberate indifference to the constitutional rights of the Plaintiff.

¹ See e.g., NYPD Officers Under "Quota" Pressure, WABC News, March 3, 2010; NYPD Officer Claims Pressure to Make Arrests, WABC News Special Report, March 3, 2010 [“At the end of the night you have to come back with something. You have to write somebody, you have to arrest somebody, even if the crime is not committed, the number's there. So our choice is to come up with the number,” said Officer Polanco.”]; real and true copies of both articles are attached hereto as **Exhibit A**.

80. The policies, procedures, customs and practices of the Defendants violated the constitutional rights of the Plaintiff under the Fourth Amendment of the United States Constitution.
81. This conduct on the part of Defendants also represents a violation of 42 U.S.C. § 1983, given that said actions were undertaken under color of state law.
82. Defendants' actions were motivated by bad faith and malice and/or deliberate indifference to the constitutional rights of Romulo Moreira.
83. As a direct and proximate result of the patently illegal and unconstitutional acts described above, the Plaintiff has been irreparably injured.

DEMAND FOR PUNITIVE DAMAGES

84. The actions of Defendants described herein were extreme and outrageous, and shock the conscience of a reasonable person. Consequently, an award of punitive damages is appropriate to punish the Defendants for their cruel and uncivilized conduct. The Plaintiffs do not seek punitive damages against the City of New York.

DEMAND FOR TRIAL BY JURY

85. The Plaintiff hereby demands a trial by jury.

PRAYER FOR RELIEF

WHEREFORE, the Plaintiff Romulo Moreira requests that this Honorable Court grant him the following relief:

- A. A judgment in favor of Plaintiff against all Defendants for compensatory damages; and a judgment against all Defendants other than the City of New York, for punitive damages in an amount to be determined by a properly charged jury;
- B. A monetary award for attorneys fees and costs of this action, pursuant to 42 U.S.C. § 1988;
- C. Any other relief this Court finds to be just, proper, and equitable.

Dated: New York, New York

October 6, 2011

Respectfully Submitted By:

The Law Office of Jeffrey Chabrowe, P.C.

By:

A handwritten signature in black ink, appearing to read "Andrew L. Hoffman", written over a horizontal line.

Andrew L. Hoffman, Esq.
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EXHIBIT A

Investigations **NYPD Officers under "quota" pressure**

Wednesday, March 03, 2010

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BRONX (WABC) -- Some police officers at the 41st precinct in the Bronx say they are under constant pressure to make a quota.

According to them, it's 1 arrest and 20 summonses per month, better known as 1 and 20.

"If you think 1 & 20 is breaking your balls, guess what you're going to be doing? You're going to be doing a lot more," an officer is heard saying on tape.

The audiotape that we obtained of a roll call underscores the emphasis that the precinct seems to place on numbers.

"Next week, 25 and 1, 35 and 1 and until you decide to quit this job to go work as a Pizza Hut deliveryman, this is what you're going to be doing until then. Do we understand each other?" the patrol supervisor is heard saying.

It's that relentless pressure to write summonses that some young people in the community say has led to them being repeatedly stopped, questioned and even frisked for no reason.

"They have you against the wall. They pat you down," Emmanuel Candelario of the Bronx said.

The Fordham graduate student says he's been stopped and frisked at least 10 times in the last 5 years.

"People feel unsafe when police are around because anytime they might get stopped, they might get frisked," he said.

Recently released data, show the NYPD stopped and questioned more people last year than in any year since the department began keeping records. A total of 575-thousand people, 87 percent of them minority. Only around two percent of the stops yielded drugs, guns or other law enforcement benefit.

"Nine out of 10 times they stop someone, they get it wrong. They're stopping an innocent person," Darius Charney of Center for Constitutional Rights said.

The NYPD would argue that no one is stopped without reason, but the circumstances often given on official stop and frisk forms seem purposefully vague, such as stopping someone for "furtive movements" or for "wearing clothes commonly used in a crime." The Center for Constitutional Rights says the NYPD is sowing these seeds of deep resentment.

"It's damaging because it builds so much distrust between the police and the communities they're policing," Charney said.

Writer and poet, Frantz Jerome has lost count of the number of times he's been stopped.

"They patted me down, had me turn around put my hands on the store's gate," Jerome explained. "I get stopped, violated and sent on my way. All I could think of was how is this any different than the sixties?"

The NYPD denies they have quotas. Deputy Commissioner Paul Browne did tell us that "police officers, like others who receive compensation, are provided productivity goals and they are expedited to work." Some crime experts would also argue that the NYPD's aggressive stop and frisk policy has played a key role in making New York the safest large city in the country.

But a Bronx Police officer, tired he says of harassing innocent, mostly minority men gave us a rare, on-camera interview to expose what he calls out of control stop and frisks fueled by a department's obsession with numbers.

"I guess it's unlawful for you to have your hand in your pockets. Or, I guess it's unlawful for you to walk home from school or go to the store. Is there a law that prevents anyone from doing that? Not that I know about. And is that a reason to go through people's pockets and search them and do all these things? Absolutely not," Officer Adil Polanco said.

Officer Polanco is on modified duty for disobeying orders in a dispute about going to the hospital with his partner who had become ill.

One other note, in 2009 nearly half of those stopped and frisked were, according to police, stopped because of "furtive movements."

If you have a tip about this or any other issue you'd like investigated, please give our tipline a call at 877-TIP-NEWS. You may also e-mail us at

the.investigators@abc.com and follow Jim Hoffer on Twitter at
twitter.com/nycinvestigates

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Investigations **NYPD Officer claims pressure to make arrests**

Wednesday, March 03, 2010

TAGS: [nypd](#), [new york city](#), [investigations](#), [jim hoffer](#)[Comment Now](#) [Email](#) [Print](#) [Report a typo](#)

NEW YORK (WABC) — An Eyewitness News investigation talks to a police officer who reveals the pressure they are under to make quotas.

When Officer Adil Polanco dreamed of becoming a cop, it was out of a desire to help people not he says, to harass them.

"I'm not going to keep arresting innocent people, I'm not going to keep searching people for no reason, I'm not going to keep writing people for no reason, I'm tired of this," said Adil Polanco, an NYPD Officer.

Officer Polanco says One Police Plaza's obsession with keeping crime stats down has gotten out of control. He claims Precinct Commanders relentlessly pressure cops on the street to make more arrests, and give out more summonses, all to show headquarters they have a tight grip on their neighborhoods.

"Our primary job is not to help anybody, our primary job is not to assist anybody, our primary job is to get those numbers and come back with them?" said Officer Polanco.

Eyewitness News asked, "Why do it?"

"They have to meet a quota. One arrest and twenty summonses," said Officer Polanco.

This audio recording exclusively obtained by Eyewitness News seems to back up Officer Polanco's assertion of a quota. You can listen to one officer as he lectures his rank and file officers during roll call at the 41st precinct.

"Things are not going to get any better. It's going to get a lot worse," said a police officer.

He lays out clearly that they need to bring in the numbers.

"If you think 1 and 20 is breaking your balls, guess what you're going to be doing. You're going to be doing a lot more, a lot more than what they're saying," said the officer.

In another recording, the 41st Precinct Patrol Supervisor appears to step up the pressure to write more and more summonses.

"Next week, 25 & 1, 35 & 1, and until you decide to quit this job to go to work at a Pizza Hut, this is what you're going to be doing till then. Do you understand?" asked the patrol officer.

"He's being clear, the only choice that we have is to do it," said Officer Polanco.

Eyewitness News asked, "Are you telling me they're stopping people for no reason, is that what you're saying?"

"We are stopping kids walking upstairs to their house, stopping kids going to the store, young adults. In order to keep the quota," answered Officer Polanco.

"Yeah, they locked us up for nothing," said Zebulun Colbourne.

The Colbourne brothers say they and three other friends were the victims of quotas. All were arrested a few months ago after one of them had fallen while racing each other.

Eyewitness News asked, "You fell and that's how you hurt your eye?"

"Yeah, and they just wanted to arrest us. I told them I fell but that didn't matter to them," said Elijah Colbourne.

All five were accused of engaging in tumultuous and violent conduct that caused public alarm, given a summons for unlawful assembly and booked up overnight.

Eyewitness News asked, "So you're locked up waiting to see the judge, right?"

"Yeah," answered the Colbourne brothers.

Eyewitness News asked, "Then what do they do?"

"We don't see the judge, they let us out the back door after they kept us for a day and some change" said Elijah Colbourne.

The charges were dropped, but Officer Polanco says the patrolman still got 5 summonses toward their monthly quota.

"At the end of the night you have to come back with something. You have to write somebody, you have to arrest somebody, even if the crime is not committed, the numbers there. So our choice is to come up with the number," said Officer Polanco.

One Police Plaza declined our requests to interview the 41st precinct commander. But, Deputy Commissioner Paul Browne said, "Police Officers like others who receive compensation are provided productivity goals and they are expected to work."

Officer Polanco says if they are just goals, why are officers who fail to make them, re-assigned to different shifts or relocated far from home.

It's the consequences of not making the numbers or quotas, he says, that forces officers to give out bogus summonses.

"I cannot be more honest than I've been. There's no reason for me to lie, there's no reason for me to get into the trouble I am, cause I just could've kept quiet and made the money," said Officer Polanco.

If you have a tip about this or any other issue you'd like investigated, please give our tipline a call at 877-TIP-NEWS. You may also e-mail us at the.investigators@abc.com and follow Jim Hoffer on Twitter at twitter.com/hycinvestigates

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